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A tax on gun sales is under fire. It's one of a slew of new laws that went into effect this year.

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Author: Erik Chalhoub | Section: Cover Collections | 641 Words
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IT ONLY TOOK A DAY after a new 11-percent tax on gun sales went into effect on July 1 for gun rights advocates to sue the state of California.

In the suit, filed in San Diego County Superior Court by the National Rifle Association, Second Amendment Foundation and others, the advocates state Assembly Bill 28, signed by Gov. Gavin Newsom in 2023, violates the Second Amendment and will force dealers to pass the costs of the tax down to the consumer.

Assembly Bill 28, known as the Gun Violence Prevention and School Safety Act, was authored by Assemblymember Jesse Gabriel, D-Encino, and Assemblymember Kevin McCarty, D-Sacramento.

Funds from the tax, estimated at $160 million annually, will be deposited into the newly established Gun Violence Prevention and School Safety Fund within the State Treasury. Those funds would then be allocated for gun violence prevention, mental health, law enforcement and victim service programs, according to the bill.

"The Gun Violence Prevention and School Safety Act is based on a straightforward premise – that we should prioritize the safety of our kids over gun industry profits," Gabriel said in a statement. "It's shameful that gun manufacturers are reaping record profits at the same time that gun violence has become the leading cause of death for kids in the United States."

The suit, which names Nicolas Maduros, director of the California Department of Tax and Fee Administration, as the defendant, states "the excise tax impermissibly singles out constitutional rights for special taxation. The United States Supreme Court has repeatedly held that the exercise of constitutional rights cannot be targeted through taxation."

It goes on to mention one of the plaintiffs, a woman from San Diego County, has put off buying a new gun because of the increased cost, but would "promptly purchase the firearm she has been saving up to buy" if the tax was eliminated.

The parties in the case are due in court in November for a motion hearing.

Newsom signed 22 new laws related to firearms in 2023. Most went into effect on Jan. 1 and July 1, while others won't go on the books until the next two years.

Below is an abbreviated list of some of the laws:

Assembly Bill 725

Effective July 1, 2026, the definition of a firearm will expand to include the frame or receiver of the weapon (parts that can be used to build complete guns), and should those parts be lost or stolen, a person would be required to report it to a law enforcement agency.

Assembly Bill 732

Prior to this bill's signing, Proposition 63 mandated that a person who has been convicted of a felony must turn over their firearms within five days if they are not in custody. AB732 shortens that time to 48 hours.

It also requires courts to order a search warrant for removal of firearms if the convicted person did not relinquish their guns.

Assembly Bill 762

This bill specifies the purpose of the California Violence Intervention and Prevention Grant Program, which is to support gun violence reduction initiatives in communities that are disproportionately impacted by gun violence. It also increases the maximum grant limit from $1.5 million to $2.5 million.

Assembly Bill 1089

Anyone who uses a 3D printer or computer numerical control milling machine to manufacture a firearm must be a state-licensed manufacturer. Before this bill was signed, they had to be a federally licensed manufacturer.

The new law also prohibits the sale of such machines that are strictly used to manufacture firearms to anyone in the state except for those who are state-licensed manufacturers.

Assembly Bill 1598

This bill requires the Department of Justice to update the Firearm Safety Certificate test to include the reasons for and risks of owning a firearm.

Senate Bill 417

This bill requires firearms dealers to post a notice within their location with information on a suicide and crisis lifeline, while noting the risk of having access to a firearm in a home.

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